

23CHCV02912 23CHCV02912

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-08-05

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Case Number: 23CHCV02912 Hearing Date: August 5, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

AUGUST 4,

2026

MOTION TO COMPEL

DEPOSITION

Los Angeles Superior Court Case # 23CHCV02912

Motion filed: 6/18/26 JURY TRIAL: 8/17/26

MOVING PARTY: Plaintiff Hovhannes Karapetyan ("Plaintiff")

RESPONDING PARTY: Defendant Alexis Javier Linares

Erazo ("Responding Defendant")

NOTICE: ok_

RELIEF REQUESTED: An order compelling Responding

Defendant to appear for deposition. Plaintiff further requests monetary

sanctions against Defendant and/or his counsel in the total amount of \$3,582.80.

TENTATIVE RULING: The

motion is granted. Defendant is ordered to appear for his deposition on or before 8/12/26. The Court imposes \$1,000.00 in monetary sanctions against Defendant and his counsel, payable within 30 days.

BACKGROUND

This is a personal injury action in which Plaintiff alleges that on 10/22/21, Defendants caused their vehicle to collide with Plaintiff's vehicle on California State Route 118 Highway. (Compl. ¶ 7.) On 9/28/23, Plaintiff filed his complaint against Defendants, alleging a sole cause of action for Negligence. On 11/27/23, Defendants filed their answer.

On 2/20/26, Plaintiff served Responding Defendant with his first deposition notice, with the deposition to take place on 3/13/26. (Ex. B to Decl. of Araksia Adamian.) On 4/6/26, Plaintiff served Responding Defendant with his second amended deposition notice, with the deposition to take place on 5/5/26. (Ex. E to Adamian Decl.) On 5/25/26, Responding Defendant failed to appear for his noticed deposition. (Adamian Decl. ¶ 8.)

On 6/18/26, Plaintiff filed the instant motion to compel the deposition of Responding Defendant. On 7/27/26, Responding Defendant filed his opposition.^[1] On 7/29/26, Plaintiff filed his reply.

ANALYSIS

A party may, upon proper written notice, obtain discovery by taking the oral deposition of any natural person, organization, partnership, association, or governmental agency. (Code Civ. Proc. §§ 2025.010, 2025.220.) A party deponent can be required to attend a deposition by service of a deposition notice on the party's attorney. (Code Civ. Proc. § 2025.280, subd. (a).)

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, ... without having served a valid objection ..., fails to

appear for examination, ... the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc. § 2025.450, subd. (a).)

A. Meet and Confer

A motion to compel a deposition must

(1) "set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice;" and (2) "be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Id. at subd. (b) [emphasis added].)

Here, Plaintiff's counsel declares

that on 5/5/26, she emailed Responding Defendant's counsel to inquire about the nonappearance and demand for Responding Defendant to appear for deposition within seven calendar days. (Ex. I to Adamian Decl.) On 5/15/26, Responding Defendant's counsel responded and asked if Plaintiff's counsel was available to take Responding Defendant's deposition on 5/21/26. (Ex. J to Adamian Decl.) On 5/19/26, Plaintiff's counsel asked Responding Defendant's counsel to confirm the deposition date of 5/21/26, but Responding Defendant's counsel withdrew the offer for Responding Defendant to appear on that date. (Ex. K to Adamian Decl.)

In opposition, Responding Defendant

argues that "at best, the Motion establishes that: (1) there was a misunderstanding on the part of defense counsel's office with respect to the May 5, 2026 'no-show' deposition due to Defendant Erazo's lack of communication with defense counsel; (2) Defendant Erazo's counsel offered the date of May 21, 2026 but could not secure Defendant Erazo's appearance after Plaintiff belatedly confirmed on May 20, 2026; and (3) insufficient meet and confer efforts by Plaintiff's counsel to secure future deposition dates between May 21, 2026 and June 18, 2026 (the date of the Motion)." (Def.'s Opp. 6:10–16.) Responding Defendant further argues that "the Motion is bereft of sufficient facts of what took place between the cancelled May 21, 2026 deposition of Defendant Erazo, and date of the filing of Plaintiff's Motion, June 18, 2026 –

and fails to demonstrate that Plaintiff's counsel engaged in sufficient pre-filing meet and confer efforts with Defendant Erazo's counsel." (Id. at 6:22–25.)

However, the Court agrees with Plaintiff that "where a party deponent fails to attend, Code of Civil Procedure section 2025.450, subdivision (b)(2), requires only 'a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance'; the impasse-style negotiation Defendant describes is not required." (Pl.'s Reply 4:4–7.) Furthermore, Plaintiff asserts that "the Opposition's complaint that Plaintiff did not document further meet-and-confer efforts between May 21, 2026 and June 18, 2026 is contradicted by the record. As of May 20, 2026, defense counsel had affirmatively represented, in writing, that the firm was 'trying to get you reliable dates' and would 'certainly advise you as soon as we have any.' ... Notwithstanding that the ball was squarely in Defendant's court, on May 27, 2026, Plaintiff's counsel followed up in writing, again requesting deposition dates, and on June 10, 2026, Plaintiff's counsel's office transmitted a final written meet-and-confer communication, expressly advising that it constituted Plaintiff's final attempt to secure a deposition date and that, absent a response, Plaintiff would proceed with a motion to compel. ... Both communications were ignored. No dates were ever provided, before the Motion, in the Opposition, or since." (Id. at 5:1–11; Exs. M–N to Supp. Decl. of Araksia Adamian.)

Based on the foregoing, the Court finds that counsel has satisfied the meet-and-confer requirement under Code of Civil Procedure section 2025.450, subdivision (b)(2).)

B. Good Cause

Here, Plaintiff asserts that he "is entitled to take the deposition of Defendant Linares and establish his recollection of events on the record. However, despite repeated attempts by Plaintiff to schedule the deposition, including good-faith accommodation of every defense request, Plaintiff has been met with nonappearance, broken confirmations, and the affirmative written admission by Defendant's Senior Counsel that the firm cannot commit to producing its own client. Plaintiff has no interest in involving the Court to resolve a discovery dispute but is left with no other option." (Pl.'s Mot. 4:7–12.) "Trial is set for August 17, 2026, with a final status conference on August 7, 2026. Defendant Linares is the driver whose conduct is at the center of this

action, the single most important percipient witness on liability, and Plaintiff has never once examined him under oath despite nearly six months of documented efforts." (Pl.'s Reply 7:22–26.)

The Court

notes that Responding Defendant does not dispute that good cause exists for the taking of his deposition. Based on the foregoing, the Court grants the motion, and orders Defendant to appear for his deposition, on or before 8/12/26.

C. Sanctions

If the Court grants a motion to compel a deposition, it "shall impose a monetary sanction ... in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2025.450, subd. (g)(1).)

Here, Plaintiff requests monetary sanctions in the amount of \$3,582.80 to be imposed on Defendant and/or his counsel, accounting for: (1) 3 hours of Plaintiff's attorney's time spent preparing the motion; and (2) an anticipated 3 hours drafting a reply and attending the hearing, at counsel's hourly billing rate of \$450.00 per hour. (Adamian Decl. ¶ 16.) Plaintiff also seeks to recover \$762.80 for the certificate of non-appearance and \$60.00 in filing fees for the motion and the reply papers. (Id. at ¶¶ 15–16.)

In

opposition, Responding Defendant argues that "if the Court is inclined to assess sanctions, then such sanctions should be limited to the costs incurred by Plaintiff for the 'no-show' deposition, i.e., \$762.80 – because on the date of said deposition, May 5, 2026, Defendant Erazo failed to appear for the deposition due to a misunderstanding by defense counsel, caused by a lack of communication between Defendant Erazo and defense counsel." (Def.'s Opp. 7:13–17.) "And even if, for sake of argument, good cause did exist for the Motion, and substantial justification lacking on the part of Defendant Erazo, Plaintiff's request of an additional \$2,820.00 is plainly excessive and unmerited." (Id. at 7:23–25.)

In reply,

Plaintiff maintains that “there is no substantial justification here: Defendant Linares served no objection, sought no protective order, confirmed his attendance and then failed to appear, and has withheld deposition dates for nearly six months.” (Pl.’s Reply 6:24–26.) “Nor is the Opposition itself substantially justified, as it concedes the nonappearance, concedes counsel’s inability to produce the client, was filed four days late, and still offers no deposition date.” (Id. at 7:8–10.) The Court agrees. In granting the instant motion, the Court finds it reasonable to award Plaintiff sanctions against Defendant and his counsel in the amount of \$1,000.00.

CONCLUSION

The motion is granted. Defendant is ordered to appear for his deposition on or before 8/12/26. The Court imposes \$1,000.00 in monetary sanctions against Defendant and his counsel, payable within 30 days.

[1] The

Court notes that Responding Defendant filed his opposition two Court days late. (Code Civ. Proc. § 1005, subd. (b).) Notwithstanding the foregoing, the Court exercises its discretion, under Rule 3.1300 of the California Rules of Court, to excuse the untimely-filed opposition and consider its contents.